

25VECV00673 25VECV00673

County: los-angeles
Division: Civil Law and Motion
Department: I
Hearing date: 2026-08-11
Motion: PLAINTIFF'S MOTION FOR ATTORNEY'S FEES AND COSTS
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Case Number: 25VECV00673 Hearing Date: August 11, 2026 Dept: I

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

COUNTY
OF LOS ANGELES

HAMIK AVETISYAN, an individual,

Plaintiff,

vs.

JAGUAR LAND
ROVER NORTH AMERICA, LLC, a Delaware Limited Liability Company; and DOES 1
through 30, inclusive,

Defendants.

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CASE

NO: 25VECV00673

[TENTATIVE]

ORDER RE: PLAINTIFF'S MOTION FOR ATTORNEY'S

FEES AND COSTS

Dept.

I

DATE:

AUGUST 11, 2026

TIME: 8:30 A.M.

COMPLAINT

FILED: FEBRUARY 6, 2025

TRIAL

DATE: NONE

I.

BACKGROUND

On February 6, 2025, Plaintiff Hamik Avetisyan ("Plaintiff") filed a complaint against Defendants Jaguar Land Rover North America, LLC ("Defendant") and Does 1 to 30 alleging nine causes of action: (1) fraud and deceit; (2) breach of written warranty pursuant to the Magnuson-Moss Warranty Act; (3) breach of implied warranty pursuant to the Magnuson-Moss Warranty Act; (4) breach of written warranty pursuant to the Song-Beverly Consumer Warranty Act; (5) breach of implied warranty pursuant to the Song-Beverly Consumer Warranty Act; (6) violation of Cal. Bus. & Prof. Code § 17200; (7) violation of Bus. & Prof. Code § 17500; (8) negligence; and (9) strict liability.

On July 6, 2026, Plaintiff filed the instant motion for attorney's fees and costs.

On July 16, 2026, Hyundai filed its opposition.

On July 23, 2026, Plaintiffs filed their reply.

II.

LEGAL

STANDARD

A

prevailing party is entitled to recover its attorneys' fees when authorized by contract, statute, or law. (Cal. Code of Civ. Proc. § 1033.5(a)(10); Cal. Civ. Code § 1717(a).) "To 'incur' a fee, of course, is to 'become liable' for it . . . i.e., to become obligated to pay it." (Rope v. Katz (1995) 11 Cal.4th 274, 280.)

Courts

begin with an independent review of the evidence to determine the reasonableness of the hours actually spent litigating the matter and to assess

whether there was padding, overstaffing, duplication, or marked inefficiency. (Donahue v. Donahue (2010) 182 Cal.App.4th 259, 272.) The prevailing party who seeks fees and costs bears the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates. (Cristian Research v. Alnor (2008) 165 Cal.App.4th 1315, 1320.) To that end, the Court may require a party to produce records sufficient to provide a proper basis for determining how much time was spent on particular claims. (Ibid.) The evidence should allow the Court to consider whether the case was overstaffed, how much time attorneys spent on particular claims, and whether the hours were reasonably expended. (Ibid.) The Court has discretion to award fees based on the attorney's declaration describing the work they have done and based on the judge's own view of the number of hours reasonably spent. (Syers Props. III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 698.)

III.

DISCUSSION

Attorney's
Fees

Plaintiff argues

that he is the "prevailing party" for the purposes of CCP § 1033.5(a)(10) because the parties resolved the merits of this matter by executing a settlement agreement (hereinafter the "Agreement"). (Motion at 5:3-22.) Pursuant to the Agreement, Defendant agreed to pay Plaintiff's reasonable attorney's fees, costs, and expenses, with the amount to be determined by a noticed motion. (Ibid.)

Pursuant to the

Song-Beverly Consumer Warranty Act (the "Act"), a consumer "shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Civ. Code § 1794(d).) This provision "requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable." (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104.)

Plaintiff seeks \$67,777.00

in attorney's fees, representing \$24,610.00 for Hovanes Margarian for 43.60 hours of attorney work at the hourly rates of \$650.00 and \$750.00, \$26,572.00 for Armen Margarian for 43.60 hours of attorney work at the hourly rates of \$550.00 and \$670.00, \$8,960.00 for Akop Jack Ter-Saakyan for 12.80 hours of attorney work at the hourly rate of \$700.00, \$6,720.00 for Patrick Kimball for 9.60 hours of attorney work at the hourly rate of \$700.00, \$915.00 for assistant fees, and a lodestar multiplier in the amount the Court deems appropriate. (See Motion at 5:13-22.)

In opposition,

Defendant argues that Plaintiff seeks exorbitant fees for "a straight-forward Lemon Law case . . ." (Opposition at 1:5-6.) "The Complaint was filed on February 6, 2025 . . . The Complaint is a form or template Lemon Law complaint; other than two or three factual paragraphs, the Complaint is boilerplate . . . Defendant answered the Complaint on March 20, 2025. No demurrers or motions to strike were filed or heard. No cross-complaints were filed . . . There were no amendments to the pleadings . . . There were no motions for judgment on the pleadings . . . The case settled with little effort by February 27, 2026." (Id. at 13-21)(emphasis in original.)

A lodestar multiplier is an accepted and common practice in cases where counsel works on a "pure contingent basis" due to the "risks associated with the case." (See *Bernardi v. County of Monterey* (2008) 167 Cal.App.4th 1379, 1399.) However, a court has discretion to decrease the lodestar by looking at factors including "the nature of the litigation, its difficulty, the amount involved, the skill required in its handling, the skill employed, the attention given, the success or failure, and other circumstances . . ." (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1096.) Here, considering the simplicity of the instant action and the mandatory fee-shifting statute in a Song-Beverly action which decreases contingency risk, the Court declines to award a Lodestar multiplier.

The Court now reviews the \$67,777.00 sought in attorney's fees. (See Hovanes Margarian Decl. Exh. A [billing records].) The Court finds that the bulk of this work was performed at hourly rates of \$700.00 and \$750.00. (Ibid.) Finding this amount unreasonable given the amount of skill and expertise involved, and considering the extensive time spent on a straightforward non-complex case, the Court imputes an hourly rate of \$400.00 to the work of counsel and decreases hours spent from 109.60 to 75.00. Therefore, Plaintiff is awarded \$30,915.00 in attorney's fees,

representing 75.00 hours of attorney work at an hourly rate of \$400.00 and \$915.00 for assistant work. (See Hovanes Margarian Del. Exh. A [billing records].)

Plaintiff is also awarded \$4,928.68 in costs. (See Memorandum of Costs.)

IV.

CONCLUSION

Based on the foregoing, Plaintiff's motion for attorney's fees and costs is GRANTED in part and DENIED in part.

The Court awards Plaintiffs' counsel \$30,915.00 in attorney's fees and \$4,928.68 in costs. Plaintiff to serve and file a proposed Judgment consistent with this ruling.

Moving party to give notice.

Dated
August _____, 2026 _____

Hon. Karen Moskowitz

Judge of the Superior
Court